

Profile

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ABOUT FIRM

It is our pleasure to introduce our corporate Law firm Sandeep Kaushik and company ("SKC") which has been operating in the field of legal advisory since 2006 with its head office situated at Gurugram (Haryana). The firm gives the benefit of a single window service to ensure a comprehensive full- service offering to deal with all kind of matters pertaining to the company across the country under one umbrella.

We are well equipped and expertise Legal/Consultancy Firm providing legal/consultancy services in various fields more specifically related to Industrial and corporate issues in addition to Civil, IPR, Arbitration and consumer related issues. We have well experienced Legal professionals on our rolls and having the manpower to manage the crisis and trouble shooting.

We maintain full-time dispute resolution team is particularly well versed in Labour, employment and Industrial matters and who are geared up and ready to provide the services round the clock. Our success is based on to provide all out support to our client to answer all inquiries and deliver high- quality services in order to meet client's interest and building a strong and a long –term relationship. The firm represents a large number of business houses across the country including Automobile, Medical, Garment, healthcare, Real Estate, IT industries, education institute, telecommunication, Manufacturers, NGOs etc. to name the few.

SKC Advocates, Attorneys & Corporate Consultants

MANAGEMENT PROFILE: -

The Law firm has a team consisting professional including lawyers, Chartered Accountants, Para legal and research associates, who are well qualified, experienced and result oriented. Credential of founder & some of Senior Associates of the Firm is as under:

1. Mr. Sandeep Kaushik is founder & heads the Law firm and is a Corporate Lawyer and has deep understanding of Indian Labour Laws with around 20 years professional experience in representing client in various corporate matters including Industrial dispute, Labour Laws, Union matters, Closure, Due Diligence and IR matters including Labour Laws litigation before Labour Court/Industrial Tribunal. His solution-centric subject knowledge, opinions and view are widely sought by multinational and Indian companies for day to day running of business. He is recognized for his deep understanding of the field of Law. He is seasoned and highly regarded advocate in the corporate fraternity.

2. Mr. Brajesh Mishra is a senior advocate and head of the team handling Labour Court matters. He brings abundant experience in labour law, particularly in conducting domestic enquiries. He is well-versed in the procedures and legal framework under the Industrial Disputes Act, 1947, (ID Act) covering issues such as strikes, lockouts, retrenchment, layoffs, dismissals, and trade union matters under ID Act. His expertise extends to negotiations, collective bargaining, and disciplinary proceedings, making him a highly respected authority in labour and industrial relations law.
3. Mr. Sunil Kaushik is a senior advocate and head of the team managing Civil and Union matters. He possesses extensive expertise in civil litigation, labour law, and industrial disputes. His professional strengths include civil drafting, including drafting of bonds, agreements, MoU and deeds, and the vetting of the same. With his abundant experience, he provides strategic leadership and ensures meticulous handling of complex legal issues.
4. Ms. Anisha is an accomplished advocate with a Master's degree in Labour Law and having extensive experience in both law and management. She oversees administrative functions and specializes in drafting, legal research, and organizational governance. Her expertise combines deep legal knowledge with practical management skills, making her a valuable asset in handling complex legal and administrative matters. She is also well versed with The Sexual harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act, 2013.
5. Advocates Atul and Anupam handle the legal affairs of the firm at the ground level. They are well-versed in Indian Civil and Labour Laws, ensuring compliance and providing expert guidance on all related matters
6. In addition, we also have a dedicated Compliance team headed by Mr. Bijender Singh, Mr. Bhupender Kumar and Mr. Mahender Kumar who are expert in getting License and Registration under various Labour laws and their Renewal from time to time. Apart from representation before various authorities like ESIC, Labour, Factory Departments and Office of the Regional PF Commissioner etc., the team is expert in maintaining various registers, Forms, returns, and compliances required under Labour laws i.e. (The Factories Act, The Shop & Commercial Establishment Act, The Employees provident funds and Miscellaneous Provision Act, The Employees State Insurance Act, The Building And Other Construction Workers' Welfare Cess Act, The Payment of Bonus Act, The Payment of Wages Act, The Payment of Gratuity Act, The Minimum Wages Act, The Equal Remuneration Act, The Labour Welfare Fund Act, The Contract

Labour (R & A) Act, The Maternity Benefit Act, The Industrial Employment (Standing Order) Act and Pay roll processing etc.

7. CA Umesh Sharma and CA Narender Lamba are associated with us and having more than 10 years of the experience in the field of Statutory audits, Taxation and corporate Law.

The Law Firm has fully qualified Advocates, staff & associates to address the needs of the clients in a timely and cost-effective manner. The team of advocates of the firm are passionate and are qualified in different fields of law to render the result oriented legal solutions and the innovative legal strategies are adopted and advices are rendered by the firm have shown great results.

OUR MISSION: -

The firm provides workable advice and cost-effective assistance to our clients. The client's benefit is our foremost aim. The approach of the firm is to provide clear, concise and practical advice with time bound deliverables to support Client's business objectives. The firm focuses on problem avoidance and not just on problem solving. With a sophisticated understanding of changing business environment intersecting with law, public policy and technology, the Firm is positioned to protect its clients' business interests in the present era of globalization.

Dynamic development of business requires a legal team able to provide effective solutions, based on experience in particular legal areas. We provide our clients with legal services in such areas where we can prove essential knowledge and experience. Our aim is to propose to our client's legal support in order to let them perform their own activities and rely upon our legal background.

COMMITMENT AND VISION:-

We are committed to provide high-end Legal consultancy services to our esteemed clients. We are developed on a tradition to specialize in listening, even the unsaid word, and understand your business requirements.

We strive hard to defend the honour of our profession by adopting the highest degree of professionalism, craftsman and preservation of much valued client secrets including act with fairness, integrity, ethics, diligence and social responsibility.

BRIEF ON LABOUR LAWS

We are committed to provide satisfactory services to the clients by delivering prompt & quality output at value prices. Our end-to-end service includes.

Labour Laws Consultancy Solution

As far as Labour Laws is concerned, the same is social welfare legislation and therefore impose a statutory responsibility to the company of various requirements under it, with the object to protect the interest of the workmen. Since Labour Laws figures in the concurrent list in the Constitution of India, both Center and State Acts legislate and enforce Labour Laws in their respective domain. Establishment while closer has to obtain necessary approvals, permissions and consent of the concerned authorities under the various Acts. Apart from it, a unit has to comply with the respective Rules of the state as well. These requirements under various Acts & Rules must be followed and implemented in totality to avoid violations on the part of employer.

All the above services are specifically customized to accomplish individual customer requirements. The strength of the firm has grown over the years and so the commitment to advance the interests of the clients. The firm understands the need, importance and the essence of **"Time Management"** and that's why the firm is committed to respond quickly to the needs of the clients in order to render them a clear and explicit legal advice without the loss of time.

Advocacy and Consultancy in this field requires special systems and the intention of the employer is required to be considered. Majority of the employers have now become chastened, enlightened and law abiding and they intend to follow the procedures of laws in the safe manner. Timely guidance in the right spirit will assist the employer to have due compliance and industrial peace in the company with less litigation. The profession of advocacy and consultancy in the field of Labour Laws is a combination of compact efforts to guide, suggest and advise the management on the one part and to conduct the litigation on the other part. We take utmost care in dealing with the legal matters and we maintain the transparency and update the client with the latest information and developments.

In respect of Labour Laws our services start from the state of Recruitment and continue till its Final Execution. The detailed study of HRD, HRM and IR with rules and regulations by the management and guidance about the latest verdicts of the courts in the implementations are the need of the hour. We are committed to provide satisfactory services to the clients by delivering prompt & quality output and our endeavors are getting favorable results to our clients.

OUR LEGAL SERVICES

In line with our larger objective to provide a single window for all outsourcing needs of non-core business processes, legal services at the highest professional level, and capable rendering effective solutions mainly in the following areas:

➤ **Legal Consultancy Services**

- Day to Day Consultancy legal and compliance
- Day to Day employment consultancy
- Day to Day HR consultancy
- Oral and written Opinions,
- Drafting of Legal Notice/reply to notice
- Drafting of the Contracts/Agreements/NDA
- Vetting of the Contract/Agreement/NDA etc.

➤ **Litigation Services Civil & Industrial Law**

- Brief the management about merit of the case
- Drafting of petition and replies according to management stand
- Handling of the Court Case.
- Appearance and representation in the matter till the disposal of the case in Court.

➤ **Labour Laws & Employment Consultancy Solution**

- Brief the management about Indian Labour Law
- Legal opinion on Issues on Labour Laws
- Guidance about strike, lockout, retrenchment, layoff and dismissal etc.
- Guidance about trade union issues, negotiations, collective bargaining and disciplinary proceedings.
- Drafting of policies Various replies/Comments on behalf of management to be submitted before various authorities like ESIC, Labour, Factory Departments Office of the RPFC etc.
- Guidance about Licensing and Registration under various Labour laws.
- Guidance in Maintenance of Records under Labour laws.
- Guidance and maintenance of various registers, Forms, returns and compliances required under Labour laws i.e.
 - i. The Shop & Commercial Establishment Act,
 - ii. The Employees provident funds and Miscellaneous Provision Act, The Employees State Insurance Act,
 - iii. The Building and Other Construction Workers' Welfare Cess Act,

- iv. The Payment of Bonus Act,
 - v. The Payment of Wages Act, The Payment of Gratuity Act,
 - vi. The Minimum Wages Act,
 - vii. The Equal Remuneration Act,
 - viii. The Labour Welfare Fund Act,
 - ix. The Contract Labour (R & A) Act,
 - x. The Maternity Benefit Act,
 - xi. The Industrial Employment (Standing Order) Act and
 - xii. The Industrial Disputes Act etc.
 - Documentations, Maintenance of Records & Statutory Registers and Payroll Processing.
 - Preparation and Submission of Periodical Statutory Reports.
 - Correspondence with Government officials whenever required.
 - Guidance of latest Rules and amendments in Labour Laws.
 - Guidance to the management in drafting, communications to be issued to the employees like appointment letters, charge sheets, show-cause notices, dismissal orders etc.
 - We will also guide the officials of the company in drafting service rules-standing orders, policy for the company.
- **Pay roll Processing**
- Running monthly pay roll and maintaining all data
 - Processing of salary
 - Verification of salary i.e. input vs output, salary / employee data variance compares to last month, auditing of salary / employee data variance.
- **HR/compliance audit of a company**
- It is also called health check-up of the company
 - Audit of the statutory records of the company to ensure status of compliances under various labour laws.
 - Audit of the statutory records of the company's vendor to ensure status of compliances under various labour laws.
- **Compliance of all statutory provisions applicable under the Sexual Harassment of Women at Workplace Act, 2013**
- Making the policy in the company under the said Act. Including the application of the policy and other requisites which are mandatory under the policy to be followed.

- Outside observatory authority membership on IC and the working, accordingly.
- Guidance about formation and running of IC and formation of IC.
- Clarifying the queries about the said Act to the IC and other concerned.
- Guidance about dealing with complaints under the subject to the IC.
- Quarterly awareness session for the IC on its working and compliance of the said Act.
- Guidance in Preparing and submitting the Annual Report to the Authorities in the District under the said Act.

Law Firm offer sin-depth knowledge, understanding of the client's requirements and legal research capabilities, particularly when handling due diligence and compliance work related to center and state Labour Laws. All the above services are specifically customized to accomplish individual client requirements.

We keep strict secrecy about the information received by us during course of meetings / discussions with the establishment and would not divulge the same to any outsider or use it in determent to the interest of the establishment.

We shall provide the services mentioned above and have a system to guide you appropriately in all these matters. We perceive the confidence of our clients as one of our most important assets of our firm. We believe in a long-lasting relationship with our clients and assure you that if we are provided opportunity to be part of your esteemed company and given a chance to work for the betterment and for protecting the interest of your esteemed company, we shall offer our services to your full satisfaction.

SOME OF OUR PRESTIGIOUS CLIENTS

- Adventist Development and Relief Agency (ADRA)
- AM/NS India Ltd.
- Ansal Buildwell Ltd.
- APL Logistics Vascor Automotive Private Limited
- Aisan Industry India Pvt Ltd
- Atotech India Pvt. Ltd.
- Auto International India Ltd.
- Auto Live India Ltd.
- Avids Technovators Pvt. Ltd.
- Autofit Pvt Ltd
- Ashimori India Private Limited
- ADM Agro Industries India Pvt. Ltd.
- Bazaar Konnection
- Bhurji Electronics Pvt. Ltd.
- Bliss Anand Private Limited
- Bosch Chassis Systems India Ltd.
- BWI Automotive Technology Pvt. Ltd.
- BANDO India Pvt Ltd
- BorgWarner Emissions Systems India Pvt. Ltd.
- Catalyst Business Solutions Pvt. Ltd.
- Concept Clothing
- Dainichi Color India Pvt. Ltd.
- DENA India Private Limited
- Delta Power Solutions India Pvt. Ltd.
- Deneb Automotives Private Limited
- Donaldson India Filter Systems Pvt. Ltd.

- Dudhmansagar Dairy (AMUL)
- DE Diamond Electric India Pvt. Ltd
- Delhi Public School Sushant Lok
- Emkay Auto Pvt. Ltd.
- EVS Fashion House
- Exclusive Motors Pvt. Ltd.
- Euro International School
- Fast Booking India Pvt. Ltd.
- Foundation Break Manufacturing Pvt. Ltd.
- Furukawa Minda Electric Pvt Ltd
- Gaurav International
- GGG Fashion Accessories (P) Ltd.
- Gurunam Fashions Pvt. Ltd.
- Guetermann India Pvt Ltd
- Goshi India Auto Parts Pvt Ltd
- Hella India automotive private limited
- Hitachi Automotive System India Pvt. Ltd.
- Hitachi Chemical India Pvt. Ltd.
- Hitachi Plant Technologies India Pvt. Ltd.
- HMC MM Auto Limited
- Hollister Medical India Pvt. Ltd.
- Hollister Global Business Services India Pvt Ltd.
- The Hustler Collective
- IIMPACT (NGO)
- Inergy Automotive India Pvt. Ltd.
- Inbrew Beverages Pvt. Ltd.
- ITC Ltd. Hotel Division

- Indigo Collections Pvt. Ltd.
- Jay Shree Chemicals & Fertilizers
- Joylukkas India Private Limited
- Jtekt FujiKiko Automotive India Limited,
- Jupiter Export.
- Kansai Nerolac Paint Ltd.
- Kesaria Rubber Industries Pvt. Ltd.
- Korloy India Tooling Pvt. Ltd
- Korloy India Manufacturing Pvt Ltd
- KSP India Pvt Ltd
- Lecoanet Hemant India (P) Ltd.
- L.G. Balakrishnan& Bros. Limited
- Lifelong India Pvt. Ltd.
- Lifting Machineries India Pvt. Ltd.
- LS Cable India Private Limited
- Louis Dreyfus Company India Private Limited
- Mac Surface Treatments Pvt. Ltd.
- Mahindra Lifespace Developers Limited
- Majestic Auto Components Pvt. Ltd.
- Mehsana District Co-Operative Milk Producers Union Limited
- Mahou India Pvt. Ltd,
- Maxop Engineering Co. Pvt. Ltd.
- Mega Rubber Techonologies Pvt. Ltd.
- Micro Coils and Refrigeration Pvt. Ltd.
- Mitsubishi Chemical India Pvt. Ltd.
- Monson Impex Pvt. Ltd.
- Mytex Polymers India Pvt. Ltd.

- MGF Sourcing Far East Ltd
- Mann and Hummel Filter Pvt Ltd,
- Macnaught Pvt Ltd
- Matrix Design & Industries Pvt Ltd
- Mark Exhaust System Ltd.
- NGK Spark Plugs India Pvt. Ltd.
- Nippon Paint (India) Pvt. Ltd.
- NKC Projects Pvt. Ltd.
- NEC Technologies India Pvt. Ltd
- Nisshinbo Comprehensive Precision Machining (Gurgaon) Pvt Ltd
- NSF Safety and Certifications India Private Limited
- Numero UNO Clothing Ltd
- Oerlikon Balzers Coating India Pvt. Ltd.
- Paramjyoti Movers Pvt. Ltd.
- Richa & Co.
- RICO Auto Industries Limited.
- Roop Automotives Ltd.
- Roop Auto Forge Pvt. Ltd
- Rosenberger Electronics Co. India Pvt. Ltd.
- Roxtech India Pvt. Ltd.
- RMC Readymix (India) Pvt. Ltd.
- Resonac Materials India Private Limited
- Riello Power India Pvt Ltd.
- Sankei Giken India Pvt. Ltd.
- SAN International
- Safdarjang Motors Pvt. Ltd.
- SKH Metals Ltd.

- Sona Stampings Ltd.
- Sprint Engineering Pvt. Ltd.
- Spinks India Pvt Ltd.
- SS Supply Chain Solution Pvt. Ltd. (3SC)
- Stumpp Schuele & Somappa
- Stanley Engineered Fastening India Private Limited
- Sudhir Power Limited
- Supron Schweisstechnik India Limited
- Showa Denko Materials (India) Pvt. Ltd.
- SMIC Autoparts Private Limited.
- Stylox Fashion Pvt Ltd
- Taiyo India Pvt. Ltd.
- Takahata Precision India Pvt. Ltd.
- TBO Tek Ltd.
- Technico Industries Ltd.
- Travel Unravel Holidays Private Limited,
- Ts Tech Sun India Private Limited
- UNO Minda Ltd.
- Ultimate Industries Ltd.
- Yamaha Music India Pvt. Limited
- Yokohama India Private Limited
- Zenica Performance Cars Pvt. Ltd.

We assure you to trust your toughest legal challenges to our Law firm.

With Warm Regards

Sunil Kaushik
Advocate
For Sandeep Kaushik & Company
Advocates, Attorney & Corporate Consultants